

CONSTRUCTION SUBCONTRACT

THIS CONSTRUCTION SUBCONTRACT ("Agreement") is made effective as of the 17th day of March, 2025 by and between **Alleato, LLC** ("Contractor") and **Miller Surveying** ("Subcontractor")

RECITALS:

A. Contractor is the General Contractor or Design-Builder engaged by iBeach Holding Partners LLC ("Owner") to furnish labor and materials and perform work required by Owner for the following project ("Project"):

- **Project Name:** 24-115 Westfield Collective
- **Project Address:** 750 E 181st Street Westfield, IN 46074
- **Project Job Number:** 24115

B. Subcontractor has agreed to furnish labor and materials and perform certain work required by Contractor with respect to the construction of improvements on real estate in which the Owner has an interest in accordance with the provisions set forth below.

C. The parties agree to reduce to writing all prior oral and written agreements regarding the subject matter of this Agreement.

NOW, THEREFORE, for good and valuable consideration including the covenants and promises made herein, the receipt and sufficiency of which are acknowledged, the parties agree as follows:

1. SUBCONTRACTOR'S OBLIGATIONS.

a. Work. Subcontractor shall perform the work ("Work") described in attached Exhibit A, and shall be bound by the subcontract documents (for example, invitation to bid, bids, plans, drawings, specifications), and which are made a part of the Agreement (collectively, the "Subcontract Documents"), as well as the construction documents (for example, plans, drawings and specifications, and the contract between Owner and Contractor ("Prime Contract") by and between Contractor and Owner (collectively, the "Contract Documents"), all of which are on file and available at Contractor's office for review by Subcontractor. The Subcontract Documents and Contract Documents are collectively referred to herein as the "Documents," and are incorporated by reference as if fully set forth herein. The Documents shall include any amendments hereby entered into after execution of this Agreement. Subcontractor shall complete and maintain the progress of the Work in accordance with the construction schedules agreed to by the parties. Subcontractor assumes toward the Contractor all obligations and responsibilities which the Contractor assumes under the Contract Documents towards the Owner. The Contractor has the benefit of all rights, remedies, and redress against the Subcontractor which the Owner has against the Contractor pursuant to the Contract Documents.

b. Subcontract Documents. Subcontractor shall provide the labor, materials, equipment, and services for the Work in accordance with the Documents and in a good and workmanlike manner. Where any provision of the Contract Documents is found to be inconsistent with any provision of these Subcontract Documents, then the provisions of the

Subcontract Documents shall control. Subcontractor shall submit all shop drawings and/or samples to Contractor within a time period sufficient to prevent delays in delivery of materials. The checking or approving of the Subcontractor's drawings by any Architect, Engineer, or Contractor's personnel shall not relieve Subcontractor from Subcontractor's responsibility for errors or omissions which may exist, even though Work is done in accordance with such checked or approved drawings. Irrespective of any approval, errors or omissions which are discovered later shall be corrected by the Subcontractor at its expense. No work or portion thereof shall be performed, nor should materials be ordered, until all required shop drawings and samples have been submitted to Contractor for its consideration. The Subcontractor shall furnish to the Contractor periodic progress reports on the Work as mutually agreed, including information on the status of materials and equipment which may be during preparation, manufacture, or transit. The Subcontractor shall cooperate with the Contractor, other subcontractors, and the Owner's own forces whose work might interfere with the Work. Subcontractor shall participate in the preparation of coordinated drawings in areas of congestion if required by the Documents, specifically, noting and advising the Contractor of potential conflicts between the Work, and that of the Contractor, other subcontractors, and the Owner's own forces.

c. Indemnity. Subcontractor shall defend, indemnify and hold harmless the Owner, Architect and Engineer, Contractor, and their agents and employees including officers and directors (the "Indemnitees") from and against all claims, damages, causes of action, losses and expenses including attorney's fees, arising out of or resulting from the performance of the Work, provided that such claim, damage, loss or expense (1) is attributable to bodily injury, sickness, disease or death, or to injury to or destruction of tangible property (other than the Work itself) including the resulting loss of use therefrom; and (2) is caused in whole or in part by any negligent act or omission of Subcontractor or any of his subcontractors, anyone directly or indirectly employed by any of them or for anyone for whose acts any of them may be liable, regardless of whether caused in part by Indemnatee. The obligations of indemnification herein shall exclude on those matters in which the claim arises out of allegations of the sole negligence of the Indemnitees. Subcontractor's obligations contained in this section are an independent obligation of the Subcontractor separate and distinct from Subcontractor's obligations stated in paragraph 1 (f) below.

d. Permits and Environmental Compliance.

i. Required Licenses, Permits, etc. Subcontractor, at Subcontractor's expense, shall obtain all required licenses, permits, inspections, tap fees, and registrations required for the performance of the Work and shall obey and abide by all applicable laws, regulations, ordinances and other rules of the United States, or any applicable agency or instrumentality thereof, and of any other duly constituted public authority applicable to this Contract, including but not limited to OSHA, environmental, wage and hour and workmen's compensation regulations and requirements.

ii. Compliance with Rules, Regulations and Laws. Subcontractor, for itself and its subcontractors, shall at all times be responsible for compliance with the rules and regulations for protection of the Owner's premises and improvements, on-site equipment, materials and workers, and all federal regulations promulgated under the Clean Air Act 40 Code of Federal Regulations CFR Part 61 Standards for the hazardous Air Pollutant Asbestos, the Toxic Substances Controls Act 40 CFR Part 761, Resource Conservation and Recovery Act 40 CFR Part 260-265 and/or State hazardous waste management program requirements.

iii. **Environmental Matters.** Subcontractor, for itself and its subcontractors, agrees and warrants that Subcontractor and its subcontractors alone are responsible for compliance with environmental spill reporting and immediate action requirements for spills of hazardous substances or hazardous wastes for spills of hazardous substances or hazardous wastes in excess of Reportable Quantities and oil and gasoline spills in certain circumstances as regulated by the Clean Water Act 40 CFR Part 263-265, the Toxic Substances Control Act 40 CFR part 761, the Comprehensive Environmental Response Compensation and Liability Act Section 103(a) and (b) of PL96-510, Department of Transportation requirements under 33 CFR Part 153 and 49 CFR Parts 171, 174, 177, and similar state law requirements.

e. **Safety and OSHA.**

i. **Safe Conditions.** Subcontractor agrees that it is solely responsible for ensuring the safety of its employees, its subcontractor's employees and others on the jobsite arising out of any aspect of the Subcontractor's performance of the Work under this Agreement. Subcontractor has the duty to provide a safe place for the performance of the Subcontractor's Work under this Agreement, including but not limited to, provision of general and safety supervision of the performance of Subcontractor's Work, ensuring that the safe use and condition of all equipment used in connection with the performance of Subcontractor's Work, implementation of procedures intended to ensure the safe performance of Subcontractor's work, implementation of safety precautions regarding the use of or exposure to any hazardous materials in the performance of Subcontractor's Work, and compliance with any and all Federal, state, and/or local laws, ordinances or regulations regarding job site safety including all OSHA requirements.

Subcontractor acknowledges that it is the sole party responsible for the safe performance of the Subcontractor's Work, *even if Contractor or Owner have implemented any safety program or regulations at the project or jobsite.*

Subcontractor shall be solely responsible for initiating, maintaining, and supervising all safety precautions and programs in connection with the performance of its Work. Subcontractor shall establish and maintain conditions of work that are reasonably safe and healthful for its employees and subcontractors, and free from recognized hazards that are causing or are likely to cause death or serious physical harm to its employees and others. Subcontractor shall indemnify, defend, and hold harmless Contractor for any fines or penalties imposed on the Contractor as a result of Subcontractor's safety violations. Subcontractor shall report to Contractor within forty-eight (48) hours any injury occurring on the Owner's premises or otherwise in connection with the Work.

ii. **Responsibility.** Subcontractor shall designate a responsible member of the Subcontractor's organization at the work site who is a competent on-site safety person and whose duties shall be as follows:

A. Prevent accidents and maintain a safe work site in compliance with OSHA standards and regulations.

B. Take prompt action for correcting safety deficiencies.

C. Perform and document safety audits for employees' work practices.

D. Coordinate with others to assure the safety and compliance of all work and site conditions under the Contractor's scope of work.

E. Maintain accessible material safety data sheets for products it brings on site and for training its employees.

F. Require its employees to attend Contractor's toolbox talks or provide other means for conducting and documenting regular periodic continual training of its employees in safe work practices.

Subcontractor shall employ at least one supervisory individual who has successfully completed a ten (10) hour OSHA training class.

iii. Accident Reporting. Subcontractor agrees that all OSHA recordable accidents either minor or severe shall be immediately reported by Subcontractor to the following persons:

A. The supervisor or safety representative of the contractor employing the injured person, or whose work the injured person was performing at the time of the accident;

B. The contractor or contractor(s) whose scope of work was involved in the accident;

C. Contractor's on-site superintendent or other representative; and

D. Owner and/or Owner's representative, if applicable.

iv. Requirements of Other Subcontracts. Subcontractor shall, by express language, include all the same language included in this Subparagraph e, Safety and OSHA, in every contract pursuant to which the Subcontractor subcontracts a portion of the Work to another subcontractor.

f. Insurance. The Subcontractor and its subcontractors shall maintain without interruption from the date of commencement of the Work until the date of final completion following types of coverage and limits of liability as set forth in Exhibit B attached hereto and made a part here of. Certificates of such insurance coverage shall be supplied to the Contractor immediately after the signing of this Agreement and prior to commencement of the Work. Failure to supply such certificates shall constitute a breach of this Agreement. Subcontractor shall name the Owner and Contractor as additional insureds on ISO Form CG-20-10-07-04 on the liability policies required by Exhibit B. Prior to starting work, the Subcontractor shall furnish satisfactory evidence to Contractor and to other parties upon request, that the Subcontractor has insurance as required by the Contract Documents. All such insurance, including general liability and umbrella/excess liability except Workers' Compensation/Employer's Liability, shall name Contractor, Owner, Architect (regardless of whether the Architect has contracted with the Owner or Contractor), and Engineer (regardless of whether the Engineer has contracted with the Owner or Contractor) as an additional insured and shall provide primary coverage (including Completed Operations) for all claims and losses against Contractor, , Owner, Architect, and Engineer, including but not limited to, those claims that arise out of injuries to the employees of the Contractor, employees of the Contractor's subcontractors or injuries to third parties, from your work under this agreement, or as a result of the Subcontractor's performance. Any other insurance in force for additional insureds shall not contribute in the payment of any claim made hereunder to the extent of the limits of liability afforded hereunder. Any coverage provided by Contractor, Owner, Architect, and Engineer shall be excess coverage.

g. Taxes. Subcontractor and its subcontractors shall comply with all federal, state, and local laws relating to taxes, employee benefits, and employment policies. Subcontractor and its subcontractors shall be responsible for and pay all taxes, assessments and contributions imposed or required by any law, including but not limited to payroll or self-employment taxes and withholdings and contributions for any unemployment insurance coverage, pension and old age retirement fund relating to the Work and their respective employees, independent contractors, and agents. Subcontractor accepts exclusive liability for all taxes and contributions required of the Contractor or Subcontractor by the Federal Social Security Act and the unemployment compensation law or any similar law of any state, in respect to the employees, independent contractors and agents of Subcontractor and its subcontractors in the performance of the Work, and agrees to furnish Contractor with satisfactory written evidence that Subcontractor has made timely payments satisfying such liabilities, past or current. If Subcontractor fails to furnish such evidence upon Contractor's request, Contractor may, in its sole discretion but not as an obligation, pay or set up a reserve for payment of said taxes and contributions from payments due or to become due to Subcontractor and deduct such amounts. Subcontractor agrees to save, defend, and hold Contractor harmless against all liability, loss, damage, claim or expense, including attorneys' fees, which in any way relate to Subcontractor's obligations under this Subparagraph g.

h. Warranties. Subcontractor does hereby guarantee and warrant that all labor and materials incorporated in the Work shall conform to the subcontract documents and shall be free from defects and faulty labor for a period of one (1) year from the date of final completion of the Work and for such longer periods of time as may be prescribed by the terms of the Documents or applicable laws. Subcontractor shall promptly correct, or cause to be corrected, all defective materials and/or workmanship and all complaints relating to the Work and any other violations of this Agreement. Subcontractor warrants that the materials used under this Subcontract are new unless otherwise permitted by the Subcontract Documents. Nothing contained in this paragraph shall be construed, nor does it, shorten or affect any other period of limitation provided by law or the terms of any special warranties required by the Documents.

i. Waiver of Subrogation of Workers Compensation. Waiver of Workers' Compensation Lien, Rights of Subrogation or Recovery of Workers' Compensation Benefits.

To the fullest extent permitted by law, Subcontractor for itself and on behalf of its workers' compensation insurer who may be obligated to pay workers' compensation benefits to Subcontractors' employee, hereby waives and releases any and all rights and/or claims for subrogation, workers' compensation statutory lien or other rights and/or claims of recovery for workers' compensation benefits against Owner, Contractor, Architect and Engineer, who are liable or alleged to be liable for work-related injury to Subcontractors' employee, arising out of subcontractor's contract with Contractor. Subcontractor will obtain a waiver of any subrogation rights or workers' compensation lien that its insurers may acquire against Owner, Contractor, Architect and Engineer by virtue of payment of any workers' compensation benefits. The Contractor waives subrogation against the Subcontractor to the extent provided in the Prime Contract.

2. OTHER AGREEMENTS.

a. Disputes and Delays. Time is of the essence for this Agreement. Under no circumstances shall Subcontractor delay or cause any delay in the Work during any dispute as to the meaning of the Contract Documents as they pertain to this Agreement, or because of

any dissatisfaction with or disagreement of any decision of Owner, Contractor, or the Architect. If Subcontractor disagrees with or desires to contest a decision of Owner, Contractor or the Architect, Subcontractor shall, notwithstanding the dispute and the pursuit of its resolution, whether in court or otherwise, perform and carry on the Work and shall maintain the progress schedule in accordance with the Contract Documents. The purpose of these provisions is not to penalize Subcontractor but to assure the timely completion of the Work.

b. Protection of Property and Persons. Subcontractor shall properly protect all real and personal property from loss or damage. Subcontractor shall provide and properly maintain in good condition warning signs, lights, barricades, railings, and other safeguards for the protection of workers and others on, about, or adjacent to the Owner's premises as required by the conditions and progress of the Work and as directed by the Contractor's field representative(s). Any damage caused by insufficient or faulty protection, or any act or omission of Subcontractor and its subcontractors shall be repaired or otherwise made good without delay at Subcontractor's expense. The Subcontractor shall take necessary precautions to protect properly the Work of other subcontractors from damage caused by operations under this Agreement.

c. Extra Work. No extra work shall be performed by Subcontractor, nor may Subcontractor make any modifications or reductions as to the Work, and no payment due Subcontractor shall be made thereon, unless and until such extra work, reductions, or modifications have been agreed to in writing. An email from Contractor detailing such extra work will suffice as written notice until a written change order is executed by Subcontractor and Contractor. Payment for such extra work or modifications shall be made as provided in Paragraph 3 below. A field work order will not be accepted by Contractor for extra work performed either signed or unsigned by Contractor's field superintendent or a field representative.

d. Repair of Defects. Subcontractor shall promptly correct and make good any defective materials and/or workmanship, or any Work that does not comply with the Documents, to the approval and acceptance of the Owner, Contractor and the Architect or their authorized representatives. Subcontractor agrees that Contractor and the Architect will each have the authority to reject the Work that does not comply with the Documents. Should the Subcontractor refuse or neglect to proceed within forty-eight (48) hours with the correction of rejected or defective materials and/or workmanship that does not comply with the Documents after receiving written notice to correct the defects, it is agreed that the Contractor shall have the authority, without further notice to Subcontractor, to cause the defects to be corrected and deduct the cost thereof, plus Contractor's overhead and profit together with interest thereon at the rate of eight percent (8%) until paid, from payments then or thereafter due Subcontractor, or if Subcontractor has been fully paid, then Subcontractor shall pay such amounts directly to Contractor upon demand. The Architect's decisions on matters relating to aesthetic effect shall be final and binding on the Subcontractor if consistent with the intent in the Documents.

e. Moving Materials. If it becomes necessary, in the opinion of Contractor, at any time during the performance of the Work to move materials and/or equipment belonging to Subcontractor or its subcontractors, Subcontractor or subcontractor furnishing said materials and/or equipment shall, when so directed by Contractor, move them or cause them to be moved without additional charge.

f. **Clean-up.** Subcontractor, for itself and its subcontractors, shall remove its debris and scrap materials from the site and shall clean up the Work at the conclusion of each day and as otherwise required by Contractor. In addition, in the event Subcontractor does not clean-up to Contractor's satisfaction after twenty-four (24) hour notice to Subcontractor, Contractor shall see that the same is done and may back charge Subcontractor. In addition, subcontractor shall, upon completion of the Work, remove all of its equipment and debris from the Owner's premises, unless more exactly specified otherwise, to the complete satisfaction of Contractor.

3. CONTRACT PRICE AND PAYMENT PROCEDURES.

a. **Payment.** Contractor agrees to pay Subcontractor, subject to other provisions hereof, the total sum of \$19,500.00, to be paid only for actual work performed to the satisfaction of Contractor and Owner, less a retainage of 10% which Contractor shall withhold from payments due Subcontractor. Additional terms and conditions concerning payment to Subcontractor are as follows:

i. Subcontractor shall complete monthly AIA G702/G703 applications for payment via Contractor's Project Management system within the monthly billing periods, currently beginning the 15th of each month and ending by the 25th day of the month. Subcontractor will submit sworn conditional lien waiver affidavits with their invoice and sworn unconditional lien waivers when they receive payment. Each application and certificate for payment shall show the original contract price, change order additions and deletions, percentage of completion, and all charges for services, materials, equipment and other items or costs furnished or paid by Contractor for Subcontractor and chargeable to Subcontractor (net change by change order), contract retainage and all previous payments. Also shown are the current payment due on such application and balance to finish plus retainage, as approved by Contractor and the Owner or the Architect and for which payment has been received by Contractor. If materials being billed are stored, the related amount should be in the 'Stored Materials' column on the subcontractor G703. With the invoice, the subcontractor should attach a Certificate of Insurance for the amount of Stored Materials, Bill of Sale or similar support detailing materials, location of stored material if not at their facility, and pictures/evidence of the Stored Materials. The amounts supported in the documentation must match the amounts stated in the 'Stored Materials' column on the subcontractor G703. Subcontractor must complete a separate invoice when billing retainage. Subcontractor can submit multiple invoices in a billing period; however, it must be a final base invoice and a separate retainage invoice.

ii. Contractor shall pay to Subcontractor the amount owed to Subcontractor (as set forth on the AIA G703 application), less the retained percentage thereof and any amount of chargebacks owed Contractor per the attached Billing Processing and Payment Schedule Exhibit C attached hereto providing the Contractor has received payment from the Owner within the same period of time for which payment to Subcontractor is due. Contractor reserves the right to withhold and/or reduce sums due and/or claimed by Subcontractor for (i) defective or incomplete Work not remedied to the complete satisfaction of Contractor, (ii) claims asserted in regard to Subcontractor's Work for which Contractor in its sole discretion is not adequately indemnified, (iii) failure of Subcontractor to make payments to its subcontractor(s) or for labor, materials or equipment; (iv) reasonable evidence that the Work cannot be completed within the contract time and that the unpaid balance would not be adequate to cover actual or liquidated damages for anticipated delay; or (v) persistent failure to carry out the Work in accordance with the Subcontract Documents or Documents.

b. Withholding. In addition, Contractor shall withhold from any payments made to Subcontractor hereunder any taxes required to be withheld under applicable federal or state law (for example, Indiana Gross Receipts Tax).

c. No Evidence of Compliance. No progress payment shall be regarded as evidence whatsoever of Subcontractor's satisfactory compliance with the terms of this Agreement or of Contractor's acceptance of Subcontractor's Work or materials used.

d. Approval and Evidence of Materials Stored. Subcontractor must get approval from Contractor before billing for stored materials. Notwithstanding anything to the contrary herein, before Subcontractor is entitled to any payment whether it be a final payment or an interim progress payment, Subcontractor shall produce suitable evidence of payment for material delivered to the site, and the furnishing of such evidence shall be a condition precedent to any right or claim Subcontractor may have for payment for any work done under this Agreement. The related amount billed should be entered in the 'Stored Materials' column on the Subcontractor G703. With the invoice, the subcontractor should submit a Certificate of Insurance for the amount of Stored Materials, Bill of Sale or similar support detailing materials, location of stored material if not at their facility, and pictures/evidence of the Stored Materials. The amounts supported in the documentation must match the amounts stated in the 'Stored Materials' column on the subcontractor G703

e. Final Payment. Subcontractor shall not be entitled to receive final payment, including any retainage withheld, until the Work is fully completed and performed to the satisfaction of Contractor and accepted by Owner and a complete final lien waiver affidavit release of any and all claims against Contractor and the Owner's real estate has been delivered by Subcontractor to Contractor. Additionally, Contractor must have received from Subcontractor all applicable as-built drawings, operation and maintenance manuals, product literature, including instructions and any manufacture's warranties, and such documents must be delivered to Contractor's office prior to final payment as long as Subcontractor is in full compliance with the Subcontract Documents, final payment shall be made within ten (10) business days after Contractor has received final payment from the Owner. The acceptance by Contractor of Subcontractor's release of liens shall not relieve Subcontractor of liability for defects in the Work.

4. SUBCONTRACTOR'S DEFAULT. Should Subcontractor at any time materially breach this Agreement, refuse or neglect to supply a sufficiency of skilled workmen or materials of proper quality and quantity, fail to comply with the Project Schedule, fail to pay its obligations for the Work as they become due, becomes insolvent, either voluntarily or under order of a court of competent jurisdiction, or make general assignments for the benefit of creditors, or otherwise stop work hereunder ("Event of Default"), Contractor shall have the right at its election to terminate this Agreement regardless of the amount of work completed hereunder, and in that event, Contractor shall not be required to make any payment for work not performed in accordance with this Agreement. Contractor may exercise its right to terminate this Agreement, if after forty-eight (48) hours notice, Subcontractor has failed to cure the Event of Default or taken reasonable efforts to cure the Event of Default if the Event of Default cannot be cured with forty-eight (48) hours. If Subcontractor is unavailable, notice of an Event of Default shall be made in writing to Subcontractor mailed, delivered, or faxed to Subcontractor's last known address. Notice shall be deemed to have been received as provided in paragraph 5 (h) below. If Subcontractor's breach of this Agreement or failure to complete work results in damages to Contractor, Subcontractor agrees to pay Contractor said damages and in addition, all Contractor's costs of collection, including attorneys' fees.

5. MISCELLANEOUS PROVISIONS.

a. Supervision and Construction Procedures. Where appropriate, Contractor shall supervise and direct the Work using Contractor's professional skills and attention. Contractor shall be responsible for and have control over construction means, methods, techniques, and procedures and for coordinating all portions of the Work under contract, unless the Documents give other specific instructions as to such matters.

b. Contractor's Meetings. At intervals determined by Contractor, there shall be held, at the job site, meetings of the representatives of the various trades engaged on the project to further the progress of the work under contract. Contractor shall establish the time and place of these meetings and a representative of Subcontractor shall always attend if requested to do so. This Subcontractor representative should have the ability and authority to make decisions regarding scheduling and other matters as it pertains to completion of the scope of work.

c. Attorneys Fees. If any litigation is brought under this Agreement or which relates to this Agreement, in addition to any other relief to which the prevailing party is entitled to recover, the Prevailing Party is entitled to recover and the Non-Prevailing Party shall pay, all expenses, court costs and attorneys' fees of the Prevailing Party. For the purposes of this paragraph "Prevailing Party" shall mean the party that receives all, or substantially all of the relief requested in the litigation.

d. Receipts and Release of Liens. Before payment will be made, Subcontractor shall furnish evidence of payment for work done, and for labor, materials, equipment, and fixtures furnished through the date covered by each payment. Prior to any payment hereunder, Subcontractor shall execute a sworn waiver or release of lien for all Work performed and materials furnished for which payment will be (in form provided by Contractor).

e. No Diversion. Subcontractor agrees that monies received for its performance hereunder shall be held in trust for the payment of labor and material purchased or contracted by Subcontractor and said monies shall not be diverted to satisfy obligations of Subcontractor on other contracts.

f. Other Contracts of the Parties. Should one or more other contracts now or hereafter exist between the parties hereto or with any firm, partnership or corporation having common ownership with such parties concerning this or any other construction projects, and a breach by Subcontractor of this or any other such contracts occurs, then Contractor may, at its option, consider such breach a breach of all such contracts. In such event, Contractor may terminate any or all of the contracts so breached and/or withhold monies due or to become due on any such contract(s), and apply the same toward amounts owed Contractor or any damages suffered by Contractor on such contracts.

g. Non-Assignment or Transfer. Neither this Agreement nor any payment to become due hereunder shall be assigned by Subcontractor without the prior written consent of Contractor, and any assignment without such consent shall vest no rights in the assignee against Contractor. Subcontractor shall not sublet the whole or any part of this Subcontract without the prior written consent of Contractor.

h. Notice. All notices or other communications hereunder shall not be binding on any party hereto unless in writing and delivered to the party at the address set forth below. Notices shall be deemed duly delivered upon hand delivery, receipt of email transmission thereof, or

receipt of express or overnight delivery thereof at the addresses specified below or two (2) days after deposit thereof in the United States mails, postage prepaid, certified, or registered mail.

If to Subcontractor: Nathan Althouse
Miller Surveying
948 Conner St
Noblesville, IN 46060

If to Contractor: Brandon Clymer
The Alleato Group
8383 Craig Street
Ste 150
Indianapolis, IN 46250
bclymer@alleatogroup.com
Cell: (317) 760-0088

i. **Merger.** This Agreement and the Documents contain the entire understanding of the parties and incorporates all previous written and oral representations, agreements, and understandings. Contractor and Subcontractor have participated in the negotiation of this Agreement and neither Contractor nor Subcontractor shall be deemed the drafter of this Agreement.

j. **Unenforceable Provisions.** If any term, covenant or warranty, paragraph, clause, condition, or provision of this Agreement is held by a court of competent jurisdiction to be invalid, void, or unenforceable, the remainder of the provisions of this Agreement shall remain in full force and effect and shall in no way be affected, impaired, or invalidated thereby, and these unenforceable provisions were omitted.

k. **Applicable Law Forum and Dispute Resolution.** This Agreement shall be construed under the laws of the State of Indiana.

l. **Waiver.** Contractor's failure to exercise any or all of its remedies hereunder upon default of the Subcontractor shall not act as a waiver of any other remedy available to Contractor.

m. **Remedies Not Exclusive.** All of the rights, benefits and remedies provided to Owner and Contractor by this Agreement, or by any instrument or document executed pursuant to this Agreement, shall be cumulative and shall not be exclusive of any rights, remedies and benefits allowed by law or equity to Owner and Contractor.

n. **Changes in Writing.** No changes or modifications of this Agreement shall be valid unless in writing and signed by all of the parties to this Agreement. No waiver of any provision of this Agreement shall be valid unless in writing and signed by the person or party against whom charged.

o. **Authorized Signatures.** The execution and delivery of this Agreement have been duly authorized by all necessary action of Subcontractor. Subcontractor has full power and capacity to execute, deliver, and perform this Agreement and each of the Subcontract Documents to be delivered by Subcontractor or its representatives in connection herewith.

p. **Additional Subcontract Documents.** Additional documents and attachments made part of this Subcontract are as follows:

- Exhibit A Subcontractor Scope of Work
- Exhibit B Insurance Requirements
- Exhibit C Billing Processing and Payment Schedule
- Exhibit D Schedule of Work

q. Counterparts. This Agreement may be executed in any number of counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

IN TENDING TO BE LEGALLY BOUND, the parties have voluntarily executed this Agreement, by their authorized representative.

"Subcontractor"

"Contractor"

Miller Surveying

Alleato, LLC

By: _____

By: _____

Printed Name: _____

Printed Name: Glenn Ducharme

Its: _____

Its: _____

Date: _____

Date: _____

EXHIBIT "A"
SUBCONTRACTOR SCOPE OF WORK

Subcontractor shall furnish all necessary equipment, material, and labor to perform the **Site Surveying**

Inclusions

1. Includes all labor, material, equipment (including safety equipment), supervision, and incidentals to perform a complete site survey and staking, and perform all such work in accordance with the contract drawings, specifications, addenda, and other documents that make up the contract documents but not limited to the following:
2. Coordination with Alleato Superintendent and other sub contractors to ensure staking is completed ahead of scheduled work.
3. All survey control work and computations necessary to furnish the construction layout services.
4. Provide semi-permanent bench mark to establish elevation for all project layout. Locate benchmark in a location on site which will not be disturbed by construction activities.
5. First staking to cover silt fence, construction drive, and off-site storm line that runs to the NE.
6. Stake property corners and new entrance drive for silt fence and temporary construction fence installation (One time).
7. Stake and grade sanitary and storm sewers (one time).
8. Stake water line (one time).
9. Stake and grade swales (one time).
10. Stake building corners, patio offsets and intermediate column lines. (One Time) Foundation subcontractor responsible for installing offset batter boards.
11. Silt fence staking to be completed prior to site mobilization on 4/1/25.
12. Provide all required documentation to Project Manager prior to beginning work.
13. Additional trips for staking billed at hourly rate of \$195/hr.
14. Additional trips over (12) will incur a \$170 trip charge.
15. Submit applicable lien waivers with pay apps.
16. All invoices are to run through Job Planner. Any invoice submitted outside of Job Planner will not be processed.

All work shall be in conformance with the following plans.

Date of commencement of Subcontractor's Work: The Subcontractor shall commence its Work as follows:

See Attached Exhibit "D"

The Work of this Subcontract shall be substantially completed not later than:

See Attached Exhibit "D"

EXHIBIT "B"
INSURANCE REQUIREMENTS

Type of Insurance	Limits of liability (\$..00)
1. Commercial General Liability	(For Contracts less than \$250.000)
a. Each Occurrence	\$500,000.00
b. General - Aggregate	\$1,000,000.00
c. Products – Aggregate	\$1,000,000.00
d. Completed Operations	\$1,000,000.00
e. Personal and Adv. Injury	\$1,000,000.00
f. Fire Damage (Any one fire)	\$1,000,000.00
g. Medical Expense (Any one person)	\$5,000.00
2. Commercial General Liability	(For Contracts over than \$250.000)
a. Each Occurrence	\$1,000,000.00
b. General - Aggregate	\$2,000,000.00
c. Products – Aggregate	\$2,000,000.00
d. Completed Operations - Aggregated	\$2,000,000.00
e. Personal and Adv. Injury	\$1,000,000.00
f. Fire Damage (Any one fire)	\$1,000,000.00
g. Medical Expense (Any one person)	\$5,000.00
3. Automotive Liability	(Owned, Non-owned and Hired)
For Contracts less than \$250,000:	
Bodily Injury – Each Person	\$250,000.00
Bodily Injury – Each Occurrence	\$500,000.00
Property Damage – Each Occurrence	\$100,000.00
Property Damage – or Combined Single Limit	\$500,000.00
For Contracts \$250,000 or greater:	
Bodily Injury – Each Person	\$500,000.00
Bodily Injury – Each Occurrence	\$1,000,000.00
Property Damage – Each Occurrence	\$250,000.00
Property Damage – or Combined Single Limit	\$1,000,000.00
4. Workers Compensation and Employer's Liability	\$500,000.00
a. Each Accident	\$500,000.00
b. Each Occupational Disease	\$500,000.00
c. Disease - Each Employee	\$500,000.00
5. Excess Liability (Umbrella Form)	
a. Each Occurrence	\$1,000,000.00
b. Aggregate	\$1,000,000.00
6. Independent Contractors and/or Subcontractors:	same limits as above

EXHIBIT "C"
BILLING PROCESSING AND PAYMENT SCHEDULE

Payment Schedule

Contractor shall pay Subcontractor within ten days of Contractor's receipt of payment from the Owner.

Job Planner Billing Instructions

1. ENTERING THE SCHEDULE OF VALUES

- a. Log in to JobPlanner
- b. Click on the **PROJECT INVITES** selection on the left side panel and select the project you are going to work on
- c. Click on the **DASHBOARD** drop down
- d. Under **JOB COSTING** on the right side click on **COMMITMENTS**
- e. Click the blue underlined Commitment Number
- f. Click on the **Subcontractor SOV (0) sub-tab**
- g. Click **ADD LINE ITEM** located at the top left of the screen
- h. Click on the **NEW LINE ITEM** option
- i. Enter the Cost Code, Type of work, Description, and Amount into the line
 - i. This information will become the line items of your AIA G703 when invoicing
- j. When ready to submit, click on **SUBMIT FOR REVIEW**

2. CREATING AN INVOICE

- a. Click on "Yes" in the body of the email
- b. After logging in, enter the commitment you are going to invoice
- c. Click on the INVOICE tab once the commitment is open
- d. Click on the Schedule of Values tab
- e. You can enter either a percent complete in the "Total Progress %" column OR enter dollar amounts in the "Work Completed" column
- f. There is a field to attach backup for items such as photos of stored material, conditional or unconditional lien waivers, or other documents. Attach backup by dragging and dropping the files into the 'Attachments' field within the invoice general tab
- g. If you need to save the invoice and finish it later, click on "Save"
- j. When ready to submit, click on **SUBMIT FOR REVIEW**

3. CREATING A RETAINAGE INVOICE

Retainage for the project must be submitted in a separate invoice. Multiple invoices may be submitted in a billing period; however, it must be a final base invoice and then a separate retainage invoice

You will receive an email with an invitation to invoice when the billing period is opened

- a. Click on "Yes" in the body of the email
- b. After logging in, click on the commitment you are going to invoice

- c. Click on the **INVOICE** tab once the commitment is open and click the newly opened invoice
- d. Retainage amounts are entered into the **Retainage Released** column on the far right of your screen
- e. When ready to submit, click on **SUBMIT FOR REVIEW**
- e. To save a PDF copy of the invoice, click on the “Export” drop down at the top right

EXHIBIT "D"
SCHEDULE OF WORK